

Ram Bhawan Singh v. Chief Managing Director, U.P. Power Corp.

High Court of Judicature at Allahabad · Division Bench · 16 October 2015 · Writ-C No. 58408 of 2015 (All.) · Writ-C No. 58408 of 2015 · **Writ disposed; petitioner relegated to CGRF under clause 7.10.**

HEADNOTE

A writ seeking to restrain further electricity connections from an installed 63 KVA transformer was disposed of, leaving the petitioner to the Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Ram Bhawan Singh petitioned the Allahabad High Court under Article 226 seeking a direction that the Executive Engineer, Uttar Pradesh Power Corporation, Poorvanchal Electric Distribution Division, Fatehpur, should not grant further electricity connections from a 63 KVA transformer already installed. Counsel for the Corporation submitted that the grievance could be taken to the Consumer Grievance Redressal Forum under paragraph 7.10 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF as forum for grievance against further connections from a transformer

HOLDING

Where a consumer objects to the licensee releasing further connections from an installed transformer, that grievance is to be raised before the Consumer Grievance Redressal Forum as contemplated in clause 7.10 of the U.P. Electricity Supply Code, 2005; the High Court will dispose of the writ leaving that statutory remedy open. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER FURTHER ELECTRICITY CONNECTIONS COULD LAWFULLY BE RELEASED FROM THE 63 KVA TRANSFORMER

Left to the Consumer Grievance Redressal Forum under clause 7.10 ¶ 1